

CERCLA, SARA, and Superfund Sites

Congress established the **Comprehensive Environmental Response, Compensation, and Liability Act (CERCLA)** on December 11, 1980 to clean up abandoned or uncontrolled hazardous waste sites and respond to spills that may endanger public health or the environment. CERCLA created a tax on chemical and petroleum industries-two of the largest polluters-to partially fund the project. This fund is called the Superfund, and so sites identified by the EPA as requiring hazardous waste cleanup are called Superfund sites. A Superfund site is defined as any property that has been placed on the EPA's National Priorities List (NPL) due to the presence of an uncontrolled hazardous substance.

Among other actions, CERCLA:

- Created requirements for closed and abandoned hazardous waste sites
- Established liability for hazardous waste release at these sites, requiring landowners to take responsibility for cleanup
- Created a trust fund (the Superfund) to provide for cleanup when a responsible party could not be identified

The EPA, upon determining that hazardous contamination has occurred, is authorized to begin remedial action, which will include trying to identify the responsible parties (current and former owners and operators, generators of the hazardous substance, and those who arranged for the disposal of the hazardous substance on the site). The EPA will negotiate with the responsible parties to either get them to perform the cleanup themselves, or pay for it to be done by another party, such as the EPA or the state. If a property owner is found responsible, it would behoove them to accept that ruling. When a property owner refuses to pay cleanup costs as billed by the EPA, the EPA can seek damages of up to three times the actual clean-up costs.

No matter which entities take responsibility for the cleanup, a strict process must be followed so the appropriate remedies are used and so the site is monitored after the remedial action is complete.

Superfund Amendments and Reauthorization Act (SARA)

In some cases, contamination of a site may be present without the landowner being in any way responsible or even aware. Groundwater, for example, may move contamination far from the original site. In 1986, the Superfund Amendments and Reauthorization Act (SARA) amended CERCLA and made important changes and additions to the program. Among other items, SARA created an innocent landowner immunity status for cases in which:

- The pollution was caused by a third party.
- The property was purchased after the contamination occurred.
- The landowner had no knowledge of the damage.
- The landowner performed due diligence when the property was purchased, including a Phase I environmental assessment, to ensure that no contamination was present.
- The landowner took reasonable precautions.

The EPA maintains a database of sites that have been proposed for or placed on the NPL at <http://www.epa.gov/superfund/sites/>.